

## TENTATIVE RULING

**Case:** Soliven v. Morales  
Case No. CV2025-2329

**Hearing Date:** March 3, 2026      **Department Eleven**      **9:00 a.m.**

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### **Demurrer:**

Defendant Felix G. Morales' request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendant's demurrer as to the first cause of action for partition of real property by sale is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the first amended complaint ("FAC") does not state facts sufficient for this cause of action. (*Wallace v. Daley* (1990) 220 Cal.App.3d 1028, 1035; *Regalado v. Regalado* (1961) 198 Cal.App.2d 549, 553-554; Code Civ. Proc., §§ 872.140, 874.010; Defendant's RJN, Exhibit B ["FAC"], ¶¶ 10-19.)

Defendant's demurrer as to the second cause of action for declaratory relief is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the FAC does not state facts sufficient for this cause of action. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605-606; Code Civ. Proc., § 1060; FAC, ¶¶ 10 & 20-24.) The FAC alleges an actual controversy between the parties. (FAC, ¶ 10, 15-16, 21, & 24.)

Defendant's demurrer as to the third cause of action for breach of oral contract is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the FAC does not state facts sufficient for this cause of action. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; FAC, ¶¶ 10, 15-16, & 25-28.) While defendant asserts that the FAC fails to allege defendant breached the parties' agreement, the Court finds that the FAC contains sufficient allegations as to this element. (FAC, ¶¶ 15-16 & 26.)

Defendant's demurrer as to the fourth cause of action for constructive trust is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) "A constructive trust...is an equitable *remedy*, not a substantive claim for relief." (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 398, emphasis in original; see also *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 76; FAC, ¶¶ 29-37.) This is not a cause of action, but the Court grants leave to amend to allow plaintiff to add constructive trust as a sought remedy. (See FAC, Prayer for Relief.)

Defendant's demurrer as to the entire FAC based on the sham pleading doctrine is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the complaint and the FAC contain contradictory allegations, such that the sham pleading doctrine applies. (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 637, fn. 22; see Defendant's RJN, Exhibit A; FAC.)

Plaintiff Memorie M. Soliven may amend the FAC by no later than **March 13, 2026**. (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

**Motion to strike:**

Defendant's motion to strike portions of plaintiff's FAC is **DENIED**. (Code Civ. Proc., §§ 435, 436.) First, as defendant's request to strike paragraphs 12 and 15, defendant has failed to establish that these allegations are irrelevant or improper as to plaintiff's entire action. (Code Civ. Proc., § 436, subd. (a); see, e.g., *Richman*, *supra*, 224 Cal.App.4th at p. 1186.) To the extent that defendant asks the Court to strike "similar" allegations to those in paragraphs 12 and 15, the Court finds that such a request is improper under California Rules of Court, rule 3.1322(a). (See Notice of Motion, p. 2.) Second, as to paragraph 18(b), this allegation does not specifically reference the parties' settlement negotiations and therefore, defendant has failed to show that it is improper. (See Evid. Code, § 1152.) Third, as to paragraph 32, defendant has failed to establish this allegation contradicts the allegations in plaintiff's complaint. (See FAC, ¶ 13; see generally *Squibb v. Squibb* (1961) 190 Cal.App.2d 766, 769.) Fourth, as to the sham pleading doctrine, the Court finds that defendant's request to strike "any allegation that contradicts" the allegations in plaintiff's complaint is improper under California Rules of Court, rule 3.1322(a). (See Notice of Motion, p. 2.) Finally, as to the request for attorney's fees, defendant has not established that the Court must strike plaintiff's request for attorney's fees because the FAC does not allege legal entitlement to such fees. (See generally *Bauguess v. Paine* (1978) 22 Cal.3d 626, 634.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.